

Federal Constitution

NOTES

Art. 54

1. The present Article was inserted by Act 59/1966, section 2, in force from 19-09-1966. The earlier Article as it stood at the date of repeal read as follows:

“54. Except where there is a vacancy among the members elected to the Senate by a State and the vacancy is to be filled in accordance with the provisions of the Seventh Schedule, whenever there is a vacancy among the members of the Senate or a casual vacancy among the members of the House of Representatives it shall be filled within sixty days from the date on which it is established that there is a vacancy, and an election shall be held or an appointment made accordingly.”.

Clause (1)

- a. Further proviso inserted by Act A1, section 2, in force from 18-11-1968.
- b. Amended by Act A31, section 3, in force from 24-03-1971, by omitting in the first proviso after the words “out of time” the following:

“but in any such case the term of office of a member of the Senate so appointed shall be six years from the end of the period of sixty days from the date on which the existence of the vacancy which he was appointed to fill was established and not six years from the date of his appointment.”.
- c. Amended by Act A354, section 16, in force from 27-08-1976, by inserting after the words “the date on which it is established” the words “by the Election Commission”.
- d. The words “Clause (3)” substituted for the words “Clauses (2) and (3)” by Act A585, paragraph 21(a), in force from 14-04-1984.
- e. The words “by the President of the Senate that there is a vacancy or by the Election Commission that there is a casual vacancy, as the case may be” substituted for the words “by the Election Commission that there is a vacancy” by Act A857, paragraph 3(a), in force from 20-08-1993.
- f. The second proviso which was substituted by the present proviso by Act A857, paragraph 3(b), in force from 20-08-1993 read as follows:

“Provided further, if a casual vacancy in the House of Representatives is established on a date within six months of the date Parliament shall, in accordance with Clause (3) of Article 55, stand dissolved, such casual vacancy shall not be filled.”.

Clause (2)

- a. Amended by Act A354, section 16, in force from 27-08-1976, by inserting after the words “the date on which it is established” the words “by the Election Commission”.
- b. This Clause was deleted by Act A585, paragraph 21(b), in force from 14-04-1984 and read as follows:

“(2) Where a casual vacancy in the House of Representatives relates to a vacancy which shall be filled by a member from Sabah or Sarawak, such casual vacancy shall be filled within ninety days from the date on which it is established by the Election Commission that there is a vacancy and an election shall be held accordingly.”.

2. See Art. 57(1A) & 118A.

Summoning, prorogation and dissolution of Parliament

55. (1) The Yang di-Pertuan Agong shall from time to time summon Parliament and shall not allow six months to elapse between the last sitting in one session and the date appointed for its first meeting in the next session.

(2) The Yang di-Pertuan Agong may prorogue or dissolve Parliament.

(3) Parliament unless sooner dissolved, shall continue for five years from the date of its first meeting and shall then stand dissolved.

(4) Whenever Parliament is dissolved a general election shall be held within sixty days from the date of the dissolution and Parliament shall be summoned to meet on a date not later than one hundred and twenty days from that date.

(5) A Bill pending in Parliament shall not lapse by reason of the prorogation of Parliament.

(6) (*Repealed*).

(7) A Bill pending the assent of the Yang di-Pertuan Agong under Clause (4) or Clause (4A) of Article 66 shall not lapse by reason of the prorogation or dissolution of Parliament.

President and Deputy President of Senate

56. (1) The Senate shall from time to time choose one of its members to be Yang di-Pertua Dewan Negara (President of the Senate) and one to be Deputy President of the Senate, and shall, subject to Clause (3), transact no business while the office of President is vacant other than the election of a President.

(2) A member holding office as President or Deputy President shall cease to hold his office on the expiry of the term for which he was elected or appointed a member or on otherwise ceasing to be a member of the Senate, or upon being disqualified under Clause (5), and may at any time resign his office.

(3) During any vacancy in the office of President or during any absence of the President from any sitting, the Deputy President or, if the Deputy President is also absent or if his office is also

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Art. 55

Clause (4)

- a. *See* Art. 118A.
- b. Act 59/1966, section 2, in force from 19-09-1966, inserted the words “in the States of Malaya and ninety days in the Borneo States” and substituted the words “one hundred and twenty” for the word “ninety”.
- c. The words “the States of Sabah and Sarawak” substituted for the words “the Borneo States” by Act A354, section 43, in force from 27-08-1976.
- d. The words “in the States of Malaya and ninety days in the States of Sabah and Sarawak” were deleted by Act A585, paragraph 22(a), in force from 14-04-1984.

Clauses (5), (6) & (7): Added by Act A585, paragraph 22(b), in force from 14-04-1984.

Clause (6): Deleted by Act A885, section 6, in force from 24-06-1994.

vacant, such other member as may be determined by the rules of procedure of the Senate, shall act as President.

(4) If a member of the Legislative Assembly of a State is chosen to be President he shall resign from the Assembly before exercising the functions of his office.

(5) A member who is elected to be President or Deputy President shall be disqualified from holding such office if after three months of his election to such office or at any time thereafter he is or becomes a member of any board of directors or board of management, or an officer or employee, or engages in the affairs or business, of any organization or body, whether corporate or otherwise, or of any commercial, industrial or other undertaking, whether or not he receives any remuneration, reward, profit or benefit from it:

Provided that such disqualification shall not apply where such organization or body carries out any welfare or voluntary work or objective beneficial to the community or any part thereof, or any other work or objective of a charitable or social nature, and the member does not receive any remuneration, reward, profit or benefit from it.

(6) Where any question arises regarding the disqualification of the President or Deputy President under Clause (5) the decision of the Senate shall be taken and shall be final.

Speaker and Deputy Speakers of the House of Representatives

57. (1) The House of Representatives shall from time to time elect—

(a) as Yang di-Pertua Dewan Rakyat (Speaker), a person who either is a member of the House or is qualified for election as such a member; and

(b) two Deputy Speakers from among members of the House, and the House shall, subject to Clause (3), transact no business while the office of Speaker is vacant other than the election of a Speaker.

(1A) Any person elected as Speaker who is not a member of the House of Representatives—

(a) shall, before he enters upon the duties of his office, take and subscribe before the House the oath of office and allegiance set out in the Sixth Schedule; and

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Art. 56

Clause (1)

The words “, subject to Clause (3),” inserted by Act A514, paragraph 5(a), in force from 15-05-1981.

Clause (4): Added by Act 10/1960, section 8, in force from 31-05-1960.

Clauses (5) & (6)

- a. Added by Act A514, paragraph 5(d), in force from 15-05-1981.
- b. The words “or Deputy President” were deleted by Act A566, subsection 8(1), in force from 16-12-1983 but were again inserted by Act A1130, section 5, in force from 28-09-2001.

Note:

The amendments made in Clauses (5) and (6) of Article 56 by Act A566 shall apply only to a person elected Deputy President on or after 16-12-1983.

Art. 57

Act 19/1964, subsection 7(1), in force from 30-07-1964, substituted Clauses (1), (1A), (2) and (2A) for Clauses (1) and (2). The earlier Clauses read as follows:

“57. (1) The House of Representatives shall from time to time choose one of its members to be Yang di-Pertua Dewan Rakyat (Speaker) and one to be Deputy Speaker, and shall transact no business while the office of Speaker is vacant other than the election of a Speaker.

(2) A member holding office as Speaker or Deputy Speaker shall vacate his office on ceasing to be a member of the House of Representatives and may at any time resign his office.”.

Clause (1)

Act A514, paragraph 6(a), in force from 15-05-1981, inserted the words “, subject to Clause (3),” after the words “the House shall”.

Clause (1)(b)

The present Clause was substituted by Act A566, paragraph 9(1)(a), in force from 16-12-1983. The earlier Clause as it stood at the date of repeal read as follows:

“(b) as Deputy Speaker, a person who is a member of the House;”.

Clause (1A)(b): See Art 62(3).

- (b) shall, by virtue of holding his office, be a member of the House additional to the members elected pursuant to Article 46:

Provided that paragraph (b) shall not have effect for the purposes of any of the following provisions of this Constitution, that is to say, Articles 43, 43A, 43B, 50 to 52, 54 and 59; and no person shall be entitled by virtue of that paragraph to vote on any matter before the House.

(2) The Speaker may at any time resign his office by writing under his hand addressed to the Clerk of the House of Representatives, and shall vacate his office—

- (a) when the House first meets after a general election;
- (b) on his ceasing to be a member of the House otherwise than by reason of a dissolution thereof or, if he is a member by virtue only of paragraph (b) of Clause (1A), on his ceasing to be qualified to be a member;
- (bb) upon being disqualified under Clause (5);
- (c) if the House at any time so resolves.

(2A) A Deputy Speaker may at any time resign his office by writing under his hand addressed to the Clerk of the House of Representatives, and shall vacate his office—

- (a) on his ceasing to be a member of the House;
- (b) if the House at any time so resolves.

(3) During any vacancy in the office of Speaker or during any absence of the Speaker from any sitting, otherwise than by reason of the House first meeting after a general election, one of the Deputy Speakers or, if both the Deputy Speakers are absent or if both their offices are vacant, such other member as may be determined by the rules of procedure of the House, shall act as Speaker.

(4) If a member of the Legislative Assembly of a State is chosen to be Speaker he shall resign from the Assembly before exercising the functions of his office.

(5) A person who is elected to be Speaker or a Deputy Speaker shall be disqualified from holding such office if after three

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Art. 57—(cont.)

Clause (2)(bb): Added by Act A514, paragraph 6(b), in force from 15-05-1981.

Clause (2A)

The word “A” substituted for the word “The” by Act A566, paragraph 9(1)(b), in force from 16-12-1983.

Clause (3)

- a. The present Clause was substituted by Act A514, paragraph 6(c), in force from 15-05-1981, and replaced the earlier Clause which read as follows:

“(3) During any absence of the Speaker from a sitting of the House of Representatives the Deputy Speaker or, if he is also absent, such other member as may be determined by the rules of procedure of the House, shall act as Speaker.”.

- b. The words “one of the Deputy Speakers or, if both the Deputy Speakers are absent or if both their offices are vacant” substituted for the words “the Deputy Speaker or, if the Deputy Speaker is also absent or if his office is also vacant” by Act A566, paragraph 9(1)(c), in force from 16-12-1983.

Clause (4): Added by Act 10/1960, section 9, in force from 31-05-1960.

Clauses (5) & (6)

- a. Added by Act A514, paragraph 6(d), in force from 15-05-1981.
- b. The words “or Deputy Speaker” were deleted by Act A566, paragraph 9(1)(d), in force from 16-12-1983, but were again inserted by Act A1130, section 6, in force from 28-09-2001.
- c. In the shoulder note, the words “Deputy Speakers” substituted for the words “Deputy Speaker” by Act A566, paragraph 9(1)(e), in force from 16-12-1983.

Note:

The amendments made in Clauses (5) and (6) of Article 57 by Act A566 shall apply only to a person elected as a Deputy Speaker of the House of Representatives on or after 16-12-1983.

months of his election to such office or at any time thereafter he is or becomes a member of any board of directors or board of management, or an officer or employee, or engages in the affairs or business, of any organization or body, whether corporate or otherwise, or of any commercial, industrial or other undertaking, whether or not he receives any remuneration, reward, profit or benefit from it:

Provided that such disqualification shall not apply where such organization or body carries out any welfare or voluntary work or objective beneficial to the community or any part thereof, or any other work or objective of a charitable or social nature, and the member does not receive any remuneration, reward, profit or benefit from it.

(6) Where any question arises regarding the disqualification of the Speaker or a Deputy Speaker under Clause (5) the decision of the House of Representatives shall be taken and shall be final.

Remuneration of President, Deputy President, Speaker and Deputy Speakers

58. Parliament shall by law provide for the remuneration of the President and Deputy President of the Senate and the Speaker and Deputy Speakers of the House of Representatives, and the remuneration so provided for the President of the Senate and the Speaker of the House of Representative shall be charged on the Consolidated Fund.

Oaths by members

59. (1) Every member of either House of Parliament shall before taking his seat take and subscribe before the person presiding in the House an oath in the form set out in the Sixth Schedule, but a member may before taking that oath take part in the election of a President of the Senate or Speaker of the House of Representatives.

(2) If a member has not taken his seat within six months from the date on which the House first sits after his election or such further time as the House may allow, his seat shall become vacant.

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Art. 58

1. *See* Members of Parliament (Remuneration) Act 1980 [*Act 237*].
2. The words “Deputy Speakers” substituted for the words “Deputy Speaker” appearing in this Article and in the shoulder note thereto by Act A566, section 10, in force from 16-12-1983.

Art. 59

See Art. 57(1A).

Clause (2)

The word “six” substituted for the word “three” by Act A566, section 11, in force from 16-12-1983.

Address by the Yang di-Pertuan Agong

60. The Yang di-Pertuan Agong may address either House of Parliament or both Houses jointly.

Special provisions as to Cabinet and Attorney General

61. (1) In addition to his rights as a member of one of the Houses of Parliament every member of the Cabinet shall have the right to take part in the proceedings of the other House.

(2) Either House of Parliament may appoint as a member of any of its committees the Attorney General or any member of the Cabinet notwithstanding that he is not a member of that House.

(3) This Article does not authorize any person who is not a member of a House to vote in that House or any of its committees.

(4) In this Article “member of the Cabinet” includes a Deputy Minister and a Parliamentary Secretary.

Parliamentary procedure

62. (1) Subject to the provisions of this Constitution and of federal law, each House of Parliament shall regulate its own procedure.

(2) Each House may act notwithstanding any vacancy in its membership, and the presence or participation of any person not entitled thereto shall not invalidate any proceedings.

(3) Subject to Clause (4) and to Clause (1) of Article 89 and Clause (3) of Article 159 and to sections 10 and 11 of the Thirteenth Schedule, each House shall, if not unanimous, take its decision by a simple majority of members voting; and the person presiding shall unless he is a member of the House by virtue only of paragraph (b) of Clause (1A) of Article 57 cast his vote whenever necessary to avoid an equality of votes, but shall not vote in any other case.

(4) In regulating its procedure each House may provide, as respects any decision relating to its proceedings, that it shall not be made except by a specified majority or by a specified number of votes.

(5) Members absent from a House shall not be allowed to vote.